

****Purpose of the Document:****

The guidelines provide answers to the most frequently asked questions regarding the collection, use, and sharing of personal data encountered by building managers and apartment owners.

****Target Audience:****

Managers of multi-apartment buildings, apartment owners

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2.2

The document has been updated in accordance with the provisions of the ZVOP-2 (particularly regarding data sharing and video surveillance). Version 2.1 includes an amendment to question A.6, while version 2.2 includes an amendment to question B.3.

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Guidelines for the Information Commissioner

On the Guidelines of the Information Commissioner

The purpose of the guidelines from the Information Commissioner is to provide common practical advice for personal data controllers in a clear, understandable, and useful manner, thereby addressing the most frequently asked questions in the field of personal data protection that individual data controllers encounter. With the help of these guidelines, data controllers should receive

recommendations on how to practically meet the requirements of the Personal Data Protection Act¹ (hereinafter ZVOP-2).

The legal basis for issuing the guidelines to the Information Commissioner is provided by Article 56 of ZVOP-2, which stipulates, among other things, that the Information Commissioner issues non-binding opinions, explanations, and positions on issues in the field of personal data protection and publishes them on the website or in another appropriate manner, and prepares and provides non-binding guidelines and recommendations regarding personal data protection in specific areas.

All manuals and guidelines issued by the Information Commissioner are published on the website: <https://www.ip-rs.si/publikacije/priročniki-in-smernice/>.

You can also view opinions that are accessible through search engines at: <https://www.ip-rs.si/vop>.

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Guidelines for the Information Commissioner

Introduction

The Information Commissioner (hereinafter IP) decided to prepare these guidelines due to numerous questions regarding the processing of personal data in the relationship between the manager and the condominium owner, received from both condominium owners and managers of multi-apartment buildings. The processing of personal data in this area is not specifically defined in any sectoral law, which requires managers to assess each case individually, facing numerous doubts and ambiguities that lead to difficulties in interactions with condominium owners, as managers often do not provide data to condominium owners for various reasons, despite being entitled to do so.

The purpose of these guidelines is therefore to provide practical advice or answers to the most frequently asked questions, which will assist managers as personal data controllers, who are subject to numerous obligations under ZVOP-2, in ensuring the lawful processing of personal data, and condominium owners in exercising their rights.

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Legal Framework for Personal Data Protection in the Field of Housing Law

or in the Relationship between the Administrator and the Condominium Owner

Administrators are managers of personal data collections, as they process (e.g., collect, record, modify, access, store, transmit, destroy) the personal data of condominium owners and other users of multi-apartment buildings in various ways. The processing of personal data is permissible only if the administrators have an appropriate legal basis for it.

In assessing the permissibility of processing personal data, the general legal bases established by the General Regulation and ZVOP-2 must be considered.

For the lawful processing of personal data in the private sector, there must be a legal basis in accordance with the first paragraph of Article 6 of the General Regulation, which are as follows:

- (a) the individual to whom the personal data relates has consented to the processing of his or her personal data for one or more specific purposes;
- (b) the processing is necessary for the performance of a contract to which the individual to whom the personal data relates is a party, or for the performance of pre-contractual measures at the request of such an individual;
- (c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- (d) the processing is necessary to protect the vital interests of the individual to whom the personal data relates, or of another natural person;
- (e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- (f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and

freedoms of the individual to whom the personal data relates, which require protection of personal data, especially when the individual to whom the personal data relates is a child.

The General Regulation allows for the protection of personal data in specific legal areas to also be regulated by sectoral (special) laws. Thus, in the case of processing personal data by administrators, it is necessary to consider, for example, the provisions of the Housing Act (hereinafter SZ-1) and the Law of Obligations Code (hereinafter SPZ) as well as the Rules on the Management of Multi-Apartment Buildings, which do not specify the set of personal data that administrators may process in their collections.

The third paragraph of Article 50 of SZ-1 only states that the administrator is authorized to process personal data that he or she is obliged to collect, maintain, and transmit to the competent authorities in accordance with this law. Therefore, it is necessary to assess on a case-by-case basis whether the administrator has any of the legal bases from the first paragraph of Article 6 of the General Regulation and which personal data are needed for the performance of specific tasks or the execution of their powers, which are quite precisely defined in the mentioned regulations. In this regard, the principle of data minimization, defined in Article 5 of the General Regulation, must be considered, which stipulates that personal data processed must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed.

2 Official Gazette of the Republic of Slovenia, No. 69/03, 18/04 – ZVKSES, 47/06 – ZEN, 45/08 – ZVEtL, 57/08, 62/10 – ZUPJS, 56/11 – Decision of the Constitutional Court, 87/11, 40/12 – ZUJF, 14/17 – Decision of the Constitutional Court, 27/17, 59/19, 189/20 – ZFRO, 90/21, 18/23 – ZDU-10 and 77/23 – Decision of the Constitutional Court.

3 Official Gazette of the Republic of Slovenia, No. 87/02, 91/13 and 23/20.

4 Official Gazette of the Republic of Slovenia, No. 60/09, 87/11, 85/13 and 52/22.

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Guidelines for Information of the Authorized Representative

Collection and Transmission of Personal Data – Answers to Frequently Asked Questions

A. When can the manager request personal data from owners and/or tenants?

The manager can and must collect those personal data of owners and/or tenants of apartments that are necessary for the execution of tasks entrusted to him by law or a valid management contract for a multi-apartment building.

According to the provisions of the SZ-1, the manager is the authorized representative of the co-owners. He represents them in matters related to the management of the residential building and ensures that the rights and obligations arising from contracts with third parties are executed. Regarding the conclusion of legal transactions with third parties, Article 68 of the SZ-1 stipulates that when concluding legal transactions with third parties, the manager acts in the name and on behalf of the co-owners, unless the SZ-1 or the contract for the provision of management services stipulates otherwise. The third paragraph of the same article states that when signing a contract, the manager is obliged to provide the service provider with a list of co-owners containing the name and surname or the title of the co-owner, address, apartment number, cost-sharing ratio among co-owners, and other data necessary for the provision of the service by the supplier. Since the legal transaction binds the co-owners directly (and not the manager), the service provider is entitled to further collect, process, or update the personal data of co-owners based on point (b) of the first paragraph of Article 6 of the General Regulation.

In accordance with Article 17 of the SZ-1, a co-owner who transfers ownership rights through a legal transaction must notify the manager of the change in ownership rights (immediately, but no later than thirty days from the day the acquirer has the right to propose the registration of ownership rights in the land register). The notification must also include a copy of the document showing all data about the change of ownership and the new owner, and the manager must inform the geodetic authority about this.

The sixth paragraph of Article 24 of the SZ-1 also obliges the co-owner to transmit personal data, which states that the co-owner must immediately inform the manager about the conclusion or change of the lease agreement and provide the name of the tenant and the number of persons specified in the lease agreement. Until the notification is made, the co-owner is considered the debtor of all claims arising from the management of the multi-apartment building.

1. DISTRIBUTION OF INCOME FROM RENTAL OF COMMON AREAS

Can the manager request data about apartment owners (name and surname, ownership share, personal identification number, and tax number) for the purpose of distributing income from the rental of common areas?

The manager is entitled to the data regarding the name and surname, ownership share, and tax number, but not the personal identification number, if he acts as the taxpayer of income from renting common areas based on point 4 of the first paragraph of Article 58 of the Tax Procedure Act (hereinafter: ZDavP-2). The manager is obliged to calculate, withhold, and pay the tax withholding as an advance on income tax from income derived from renting property for each individual co-owner as the taxpayer. To fulfill this obligation, he must have the data of the individual co-owner that is suitable and necessary for the purpose of calculating the advance on income tax from the rental of common areas. At the same time, the rental of common areas (according to the second paragraph of Article 25 of the SZ-1) is considered a regular management business, as the manager is the one who collects the rent received from the rental of common areas and distributes it among the individual co-owners. This income received by the co-owners is subject to taxation.

Official Gazette of the Republic of Slovenia, No. 13/11 – official consolidated text, 32/12, 94/12, 101/13 – ZDavNepr, 111/13, 22/14 – decision of the Constitutional Court, 25/14 – ZFU, 40/14 – ZIN-B, 90/14, 91/15, 63/16, 69/17, 13/18 – ZJF-H, 36/19, 66/19, 145/20 – decision of the Constitutional Court, 203/20 – ZIUPOPDVE, 39/22 – ZFU-A, 52/22 – decision of the Constitutional Court, 87/22 – decision of the Constitutional Court, and 163/22.

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The assessment of tax from the rental of property is governed by the Income Tax Act⁶ (hereinafter: ZDoh-2) and the Tax Procedure Act (Article 58). With the latter, an administrative relief has been achieved for condominium owners, who are no longer obliged to submit declarations for the assessment of advance income tax from income derived from renting property when common areas are rented out to tenants who are natural persons through the management of the multi-apartment building. From the content of the form "Declaration for the Assessment of Advance Income Tax from Income Derived from Renting Property" (form DOHPREM no. 1), based on which a declaration for the assessment of advance income tax from income derived from renting property is submitted, it is evident that the manager may request, for the purpose of calculating the advance income tax from the rental of common areas, the tax number and residence address of the condominium owners, but not their personal identification number (EMŠO).

2. SUBMISSION OF ENFORCEMENT PROPOSAL AGAINST THE TENANT

Can the manager request the condominium owner to provide the personal data of the tenant (tax number and EMŠO and a copy of the rental agreement) for the purpose of submitting an enforcement proposal against the tenant for the payment of energy, water, etc.?

Considering the fourth and sixth paragraphs of Article 24 of the SZ-1, the condominium owner must immediately inform the manager of the conclusion or amendment of the rental agreement and provide the name of the tenant and the number of persons specified in the rental agreement. The debtor of all claims arising from the operation of the multi-apartment building is the tenant, until the condominium owner informs the manager, at which point the condominium owner is considered the debtor of all claims arising from the management of the multi-apartment building. However, the SZ-1 does not impose an obligation on the owner to provide the manager with the entire rental agreement.

If the apartment owner does not settle their obligations arising from the operation of the building in a

timely manner, the manager shall send a written reminder based on Article 20 of the Rules on the Management of Multi-Apartment Buildings. If it concerns an apartment rented out, the manager sends a written reminder to the tenant, while also notifying the apartment owner. In the event that the owner or tenant does not settle these obligations even after receiving the reminder, the manager acts in accordance with Article 71 of the SZ-1, unless the manager has agreed otherwise with third parties by contract. According to Article 71 of the SZ-1, the manager must without delay fulfill due monetary obligations to third parties from contracts regarding the management of the multi-apartment building, based on the payments received from each individual condominium owner.

The Enforcement and Securing Act⁷ (hereinafter: ZIZ) in the sixth paragraph of Article 4 stipulates that the data manager or data collection is obliged to provide the creditor, who demonstrates a legal interest, with certain data upon request, regardless of the nationality or country to which the creditor belongs, including EMŠO and tax number. The creditor demonstrates a legal interest with a document that is an enforceable title, based on which enforcement can be proposed according to ZIZ. According to the second paragraph of Article 17 of ZIZ, these are enforceable court decisions and court settlements, enforceable notarial records, or other enforceable decisions or documents for which the law, a ratified and published international treaty, or a legal act of the European Union, which is applied directly in the Republic of Slovenia, stipulates that it is an enforceable title. The proposal for enforcement can also be submitted directly based on a credible document. In the proposal for enforcement based on a credible document, the creditor and debtor must be specified, including identification data from Article 16.a of ZIZ.

The form for submitting a proposal for the granting of enforcement based on a credible document (COVL-1) is Annex 1 of the Rules on Forms, Types of Enforcement, and the Course of Automated Enforcement Procedures⁸. According to Article 16.a of ZIZ, the identification data of the debtor and creditor, who is a natural person, are:

1. personal name and residence address, and
2. date of birth or EMŠO or tax number or another same connecting sign or another appropriate identification data.

6 Official Gazette of the Republic of Slovenia, no. 13/11 – official consolidated text, 9/12 – decision of the Constitutional Court, 24/12, 30/12, 40/12 – ZUJF, 75/12, 94/12, 52/13 – decision of the Constitutional Court, 96/13, 29/14 – decision of the Constitutional Court, 50/14, 23/15, 55/15, 63/16, 69/17, 21/19, 28/19, 66/19, 39/22, 132/22 – decision of the Constitutional Court and 158/22).

7 Official Gazette of the Republic of Slovenia, no. 3/07 – official consolidated text, 93/07, 37/08 – ZST-1, 45/08 – ZArbit, 28/09, 51/10, 26/11, 17/13 – decision of the Constitutional Court, 45/14 – decision of the Constitutional Court, 53/14, 58/14 – decision of the Constitutional Court, 54/15, 76/15 – decision of the Constitutional Court, 11/18, 53/19 – decision of the Constitutional Court, 66/19 – ZDavP-2M, 23/20 – SPZ-B, 36/21, 81/22 – decision of the Constitutional Court and 81/22 – decision of the Constitutional Court.

8 Official Gazette of the Republic of Slovenia, no. 104/11, 88/14, 44/16 and 13/21.

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From the above, it follows that for the submission of a proposal for enforcement, it is sufficient to alternatively enter any of the identification data listed in point 2 into the COVL-1 form. There is therefore no doubt that for the submission of a proposal for enforcement (and a lawsuit), a single unique identifier is sufficient – the Information Commissioner recommends the use of the tax number, as its processing represents a significantly lesser intrusion into privacy than the processing of the EMŠO, which also reveals the age and gender of the individual. The creditor (in this specific case, the administrator or supplier or provider of various services with which the tenant enters into an independent contract), who is evidenced by a credible document, can thus, in accordance with the principle of proportionality, obtain only one of the unique identifiers.

3. REPRESENTATION OF CONDOMINIUM OWNERS IN ENFORCEMENT PROCEEDINGS

What personal data of condominium owners can the administrator obtain from the condominium

owners for the purpose of representing the condominium owners in enforcement proceedings?

Article 48 of the SZ-1 stipulates that the administrator of a multi-apartment building is the authorized representative of the condominium owners, who represents the condominium owners in matters related to the management of the multi-apartment building and ensures that the rights and obligations arising from concluded transactions are executed. Furthermore, the fifth indent of the fourth paragraph of Article 118 of the SPZ states that the administrator represents the condominium owners in management matters and files an exclusion lawsuit on behalf of the remaining condominium owners and a lawsuit for the payment of costs and obligations that burden the condominium owner.

The administrator of a multi-apartment building thus has a special legal authorization to act as the legal representative of the condominium owners and to conduct enforcement proceedings on their behalf and for their account. The administrator can therefore, based on the SZ-1 and SPZ, obtain certain personal data of the residents for the execution of their powers. Given that the administrator is also obliged to file a lawsuit for the payment of obligations that burden another condominium owner on behalf of the remaining condominium owners, they can obtain from the condominium owners (creditors) all personal data necessary for conducting and executing the specific enforcement proceedings.

As explained in the previous response, for the submission of a proposal for enforcement, it is sufficient to enter, in addition to the personal name and residence address, any of the following data into the COVL-1 form: date of birth or EMŠO or tax number or another identical linking sign or another relevant identification data. The Information Commissioner recommends the use of the tax number.

4. DISCLOSURE OF PERSONAL DATA TO SERVICE PROVIDERS

Can and which personal data of the tenant can the administrator disclose to various providers of energy, water, and utility services?

If the obligations to a third party are not fully settled for all condominium owners, the administrator must, at the request of the third party, provide data about the condominium owner who has not paid their share of the obligations necessary for filing a lawsuit within eight working days of receiving the request. The mentioned provision should also be applied sensibly to the disclosure of personal data of tenant debtors. For filing a lawsuit in civil proceedings, the name and surname and the address of permanent or temporary residence of the defendant are sufficient (Article 180 in connection with Article 105 of the Civil Procedure Act).

9 The exclusion lawsuit is a special institute of condominium law that gives condominium owners the right and opportunity to oppose the actions of the owner or another user of a specific part of the condominium property that grossly violates the fundamental rules of neighborly coexistence or their obligations under the contract on mutual relations, making the community unsustainable with them. Condominium owners who hold more than half of the co-ownership shares in the common parts may, based on the first paragraph of Article 123 of the SPZ, first adopt a resolution to warn the violator, and if the violator continues their actions despite the warning, they may, based on the second paragraph of Article 123 of the SPZ, adopt a resolution to file a lawsuit for their exclusion and the sale of their specific part.

10 Official Gazette of the Republic of Slovenia, No. 73/07 – official consolidated text, 45/08 – ZArbit, 45/08, 111/08 – decision of the Constitutional Court, 57/09 – decision of the Constitutional Court, 12/10 – decision of the Constitutional Court, 50/10 – decision of the Constitutional Court, 107/10 – decision of the Constitutional Court, 75/12 – decision of the Constitutional Court, 40/13 – decision of the Constitutional Court, 92/13 – decision of the Constitutional Court, 10/14 – decision of the Constitutional Court, 48/15 – decision of the Constitutional Court, 6/17 – decision of the Constitutional Court, 10/17, 16/19 – ZNP-1, 70/19 – decision of the Constitutional Court, 1/22 – decision of the Constitutional Court and 3/22 – ZDeb.

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5. PUBLICATION OF RESIDENT DATA ON THE NOTICE BOARD

Can the manager publish a list of apartments with the names of condominium owners and the number of users, including the number of pets, on the notice board?

The first paragraph of Article 30 of the SZ-1 states that condominium owners are responsible for paying all management costs and other costs arising from the multi-apartment building, in accordance with their ownership shares, unless the contract on mutual relations stipulates otherwise, except for costs arising from the operation of the multi-apartment building. For the payment of costs arising from the operation of the multi-apartment building, the criteria prescribed by the minister by regulation are taken into account. According to Article 22 of the Regulation on the Management of Multi-Apartment Buildings (hereinafter: Regulation), operating costs are divided based on actual consumption when measuring devices are installed in the apartments that allow for individual consumption and cost accounting. When the division of operating costs based on actual consumption is not possible, they are divided either according to the number of residential units, or according to the area of the residential units, or according to the number of users of each individual residential unit.

If the management costs of the multi-apartment building are calculated based on the number of users of each individual residential unit, the owner of the individual unit or the tenant is obliged, based on Article 29 of the Regulation, to report the number or change in the number of users of the individual residential unit to the manager. In accordance with Article 28 of the Regulation, a person who uses the unit for at least 15 days in a month is considered the actual user of the individual unit, and dog owners are charged for the cleaning costs of common areas for each dog at half the cost allocated to one user. The Form for Reporting the Number of Users, which is an annex to the Regulation, is used for reporting the number of users and is provided to owners or tenants by the manager. Based on the received reports about the users of individual units, the manager, according to the fifth paragraph of Article 29 of the Regulation, compiles a list of individual units with the number of users, without personal data, and posts it on the notice board. The IP further points out that there is a difference between the list that may, in certain cases, be accessible only to condominium owners and the list that may be accessible to all visitors of the multi-apartment building.

The manager can only publish on the notice board, which is accessible to both owners and visitors of the multi-apartment building, such a list of individual units and the number of users of these units, including the number of dogs, that does not contain the apartment number or any other data that could identify which specific residential unit the data refers to. However, since condominium owners and tenants are entitled to data regarding the number of users of each individual residential unit, including the number of dogs, for the purpose of verifying the correctness of the calculation of cleaning costs for common areas and other common costs, it is permissible to post a list that also shows the numbers of individual units, or from which it is evident which specific residential unit the data refers to, on a notice board that is not accessible to third parties entering the multi-apartment building (e.g., on the notice board in the areas where owners' meetings are held, or in other common areas accessible only to condominium owners). The manager can also deliver such a list to condominium owners by sending it to them.

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6. ACQUIRING DATA FROM THE ADMINISTRATIVE UNIT

Does the manager of a multi-apartment building have a legal basis to obtain a named list of all residents and registered persons at the address from the administrative unit in order to take action regarding (non)payment of costs and fictitious deregistration of individual residents?

To compile a list of individual units with the number of users, the manager must adhere to the provisions of the Rules on the Management of Multi-Apartment Buildings. According to the definition in Article 28 of the Rules, a person who uses an individual unit for at least 15 days in a month is considered the actual user of that unit; if an individual unit is empty or used occasionally, for less than 15 days in a month, it is considered that one user is using it. The registration of the number of users with the manager is therefore tied to the individual unit and only anticipates the registration of the number of users, not the information on which specific individuals are those users. In accordance with

the fourth paragraph of Article 29 of the Rules, owners or tenants must notify the manager of any changes in the number of users no later than 15 days after the change occurs, with the authenticity of the data guaranteed by a signature. In the case of a change, the user must also provide appropriate documentation, such as a certificate of deregistration of permanent residence or change of residence, proof of prolonged absence due to work, school, or study obligations, medical treatment, an extract from the birth registry, or other relevant documents. Based on the received notifications, the manager of the multi-apartment building compiles a list of individual units with the number of users, without disclosing personal data, and posts it on the notice board.

If residents find that the manager does not have accurate data, they can, in accordance with the sixth paragraph of Article 29 of the Rules, notify the manager in writing about a greater number of users of a certain unit than the owner or tenant of that unit has reported. In this case, the manager will invite the owner or tenant mentioned in the written notification for clarification and thus ascertain the actual situation. If owners or tenants do not timely notify the manager of the number of users or an increase in the number of users of an individual unit, or do not report the numbers at all, the manager will consider that the individual unit is used by twice as many persons as deemed appropriate in accordance with Article 14 of the Rules on the Allocation of Non-Profit Housing for Rent, taking into account the area of the apartment without payment of personal participation and deposit.

The purpose of registering permanent or temporary residence, which is carried out in accordance with the Residence Registration Act (hereinafter: ZPPreb-1), is to record the population of the Republic of Slovenia (citizens and foreigners). Data about an individual's address is maintained and processed in the official records of the Register of Permanent Residents for the purpose of timely monitoring the status and movement of the population for the needs of state authorities and other users who require this data to fulfill prescribed tasks. The third paragraph of Article 36 of ZPPreb-1 stipulates that the administrative unit provides the landlord and manager at a specified address, upon their request, with data on the name and surname, year of birth, and type of residence of all individuals who have or have had registered permanent or temporary residence at that address, for the period for which the data is requested, if the data is needed to fulfill obligations in accordance with the law. Based on the above, the manager of the multi-apartment building thus has a legal basis to obtain from the administrative unit a list of all individuals who have registered permanent or temporary residence at a specified address or in a specific residential unit, if this data is needed to fulfill obligations in accordance with the law. It is important that the manager, when acquiring data, always pursues a lawful purpose, which he demonstrates in connection with fulfilling his obligations under the legislation (the obligations of the manager are specified, for example, in Article 118 of the SPZ). Given that the manager only needs the actual number of users of a specific unit for the purpose of maintaining the list (not their personal data, such as name, surname, and year of birth) and that the data on the number of persons who have registered residence at a specified address does not necessarily correspond to the number of users of an individual unit in a multi-apartment building, the manager will have to consider the cited provisions of the Rules on the Management of Multi-Apartment Buildings when compiling the list of individual units with the number of users. However, if, in fulfilling his obligations, for example, due to the distribution and recovery of obligations under the SPZ, he needs data on temporarily and permanently registered individuals in a specific residential unit in relation to a specific owner, tenant, or non-payer, or in relation to fictitious deregistration and could not obtain the data in accordance with the Rules, he can obtain from the Register of Permanent Residents, while adhering to the principle of minimal data scope, only the data relating to specific non-payers.

The manager keeps a record of how many persons reside in an individual residential unit when the residents agree in the contract with the manager on the distribution of operating costs based on the number of users of the individual residential unit.

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regarding specific residential units (thus not acquiring all data on temporarily and permanently registered persons in a multi-apartment building as a stock).

7. PERSONAL DATA OF ALL BUILDING USERS

Does the administrator have a legal basis for obtaining personal data of all apartment users and not just the co-owners?

From the above-cited provisions of the SZ-1, it follows that the administrator is entitled to maintain a named list of co-owners and tenants of apartments, but not a named list of all residents, as for the purposes of management and distribution of costs, it is sufficient to have only the information on the number of persons residing in each apartment (as stated in the Rules on the Management of Multi-Apartment Buildings).

B. What personal data of other owners and/or tenants are co-owners/tenants entitled to obtain?

1. COMPLAINTS OF CO-OWNERS

Can the administrator inform the members of the supervisory board about a complaint from a co-owner?

The administrator may only disclose personal data of co-owners when necessary for the purpose of fulfilling the management contract of the multi-apartment building that the co-owners have concluded with the administrator or for the execution of the powers that the administrator has under Article 50 of the SZ-1. According to Article 39 of the SZ-1, the fundamental function of the supervisory board is to oversee the work of the administrator and to cooperate with the administrator in management matters, which is why the Information Commissioner (IP) believes that the supervisory board can be informed about the complaint and the identity of the co-owner who submitted the complaint, as this is necessary and appropriate for the purpose of carrying out the supervisory board's tasks, namely overseeing the work of the administrator and for the purpose of making proposals to the administrator.

2. PERSONAL DATA OF OTHER CO-OWNERS

Can the administrator of a newer block (not all apartments are yet occupied) provide a co-owner who wishes to contact other co-owners for the purpose of establishing a supervisory board with their personal names and contact details (email address, mobile phone number, or residence address, if living elsewhere)?

The SZ-1 does not provide for such disclosure of personal data, therefore the administrator, in accordance with point (a) of the first paragraph of Article 6 of the General Regulation, could disclose (but is not obliged to do so) the personal data of co-owners only if he had their personal consent for this. This means that each co-owner must be informed in advance of the specific purpose of the disclosure of personal data (e.g., establishing representatives of the residents) and of the set of personal data that will be processed. Consent must be given voluntarily, and the co-owner may withdraw it at any time. The IP recommends obtaining written consent, as it can be proven in case of a dispute.

3. WITHDRAWAL OF SIGNATURES FOR THE REPLACEMENT OF REPRESENTATIVES IN THE OWNERS' BOARD

Co-owners have collected signatures for the replacement of representatives in the owners' board and submitted them to the administrator. At the owners' meeting, it turned out that some co-owners had withdrawn their signatures, which meant that the necessary majority for appointing a new member of the owners' board was not achieved. Can the administrator disclose the names of the co-owners who withdrew their signatures?

According to Article 25 of the SZ-1, the consent of co-owners who hold more than half of the co-ownership shares is required for transactions related to the regular management of the multi-apartment building. Transactions of regular management include, in particular, transactions...

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on the operation and maintenance of a multi-apartment building, which are further defined in Article 25.a of the SZ-1, e.g., the appointment and dismissal of the manager and supervisory board, management of reserve fund assets, leasing of common parts, acceptance and modification of the

maintenance plan for the multi-apartment building and house rules, etc. Article 34 of the SZ-1 stipulates that apartment owners can decide on the management affairs of the multi-apartment building by signing a document that records the proposed resolutions, at the owners' meeting or through electronic voting.¹¹ Decision-making by signing a document and electronic voting can complement each other; however, Article 12.a of the Rules on the Management of Multi-Apartment Buildings stipulates that an individual owner decides on a specific resolution only based on one of the prescribed voting methods. Article 35 of the SZ-1 further stipulates that written voting is conducted by signing a document on which the decision is made for or against the proposed resolution. The document must include the proposed resolutions, justification for the resolutions, the name of the owner, and the date of signing the document, as well as the majority required for their acceptance. The head of the written voting process, together with the manager, determines the voting results, which the manager publishes on the notice board or in a location accessible to all apartment owners and sends to the apartment owners of individual units that are leased. The voting result includes the text of the resolution and the total of the co-ownership shares with which the individual resolution was accepted or rejected.

The Information Commissioner believes that, in principle, the manager can provide all owners with the voting results containing personal data of the apartment owners on the ballots, so they can verify the conduct of the voting, as the legitimate interest of the apartment owners prevails in checking what the decision of the owners' meeting was or in monitoring the manager's work. The same applies to data on which of the apartment owners have withdrawn their signatures from the list.

****4. PROVIDING DATA TO THE NEW OWNER****

Can the manager provide the future buyer of an apartment with information on whether the apartment owner has settled all costs with the manager?

The manager is entitled to provide information about debts and costs with the manager to the new owner or acquirer of the apartment property based on Article 69 of the SZ-1, which stipulates that the acquirer of the apartment property takes the place of their legal predecessor in all legal transactions that the manager concludes with third parties within their authority. However, before providing personal data, the manager must ensure (e.g., by reviewing data in the land register or in the purchase agreement, if the data of the new owner are not yet listed in the land register) that they are providing data to the new owner or acquirer and not to any other natural or legal person.

****5. LIST OF APARTMENT OWNERS WITH INSURANCE CONTRACTS****

Can the manager of a multi-apartment building provide a victim, who is not one of the apartment owners, with a list of apartment owners who had liability insurance for common parts and devices in the multi-apartment building on the date of the damaging event for the purpose of claiming compensation?

The Information Commissioner explains that, from the perspective of filing a compensation claim or the necessary data for it, it does not matter whether the victim is one of the apartment owners of the multi-apartment building where the damage occurred or a third party, as in this case, they act as a victim against all apartment owners.

If the victim wants to have the damage compensated, they must request reimbursement by filing a compensation claim and demonstrate the existence of the prerequisites for liability (except for liability). According to the first paragraph of Article 965 of the Obligations Code¹² (hereinafter: OZ), the victim freely chooses from whom they will demand or with whom they will assert the compensation claim. The victim can address the compensation claim to the insurance company or the perpetrator, and technically, they can also address both. Directly asserting the compensation claim is merely an option that the OZ has provided in the interest of victims. The victim freely decides whether to also assert the claim against the perpetrator (the insured), especially in cases where they are unaware of the existence of insurance or do not know which insurance company it is with.

¹¹ In accordance with Article 12.a of the Rules on the Management of Multi-Apartment Buildings (Official Gazette of the Republic of Slovenia, No. 60/09, 87/11, 85/13, and 52/22), the owner uses a qualified electronic signature to express their will in the electronic voting process.

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concluded. It should not be forgotten that the insured, despite the compensation paid by the insurance company, may potentially be liable for the portion that exceeds the insured amount.

In accordance with the Civil Procedure Act (ZPP), the application must contain: the name of the court, the name and permanent or temporary residence or seat of the parties (the insurance company, any of their legal representatives and agents), the subject of the dispute, and the content of the statement. Therefore, if the injured party wishes to assert a claim directly against the insurance company, they do not need a list of individual condominium owners of a specific multi-apartment building who have insurance with the insurance company. Condominium owners are jointly liable for common property according to the Obligations Code (OZ), thus the list of owners is not essential for filing a claim directly against the insurance company, but rather the information about the building and the insurance company with which the condominium owners have insured liability for the common parts and devices in the multi-apartment building, which is not personal data.

However, if the injured party wishes to file a compensation claim related to the damage event that occurred in connection with the common parts and devices in the multi-apartment building against the condominium owners within the litigation process at the competent court, then the information about the list of condominium owners, which is evident from the Land Registry and is publicly accessible, is sufficient.

****6. INFORMATION ON THE REGISTRATION OF CONDOMINIUM PROPERTY IN THE LAND REGISTRY****

Can the administrator inform the condominium owners via the notice board about the status of signing the document for the registration of condominium property in the multi-apartment building, i.e., which of the condominium owners has not yet signed the document?

Given that the condominium owners jointly submitted a request or application for the registration of condominium property in the land registry through the building administrator, they are entitled to an explanation as to why the registration process has not yet begun or to information about who among the condominium owners has not signed the document, which prevents the registration process from starting. It must be taken into account that due to the non-signature of the document by a certain condominium owner, the registration of condominium property is not possible, which means that all other condominium owners who have consented to the registration are harmed. Therefore, these condominium owners are entitled to the personal name of the condominium owner who has not yet given consent for the registration. However, all other visitors to the multi-apartment building are not entitled to this information.

Thus, regardless of the aforementioned, the method of informing condominium owners via the notice board is not appropriate, as it allows third parties, such as visitors who are not entitled to this information, to access the personal data of the condominium owner. The most appropriate way to inform condominium owners is by placing a notice in the mailbox of each individual condominium owner.

****7. COLLECTION OF DATA ON VEHICLE REGISTRATION NUMBERS****

Can the authorized community of condominium owners, who manage the building in this way, require that each holder of a remote control also provide their vehicle registration number for the purpose of the agreed arrangement for limited access to parking spaces?

In the described case, the condominium owners of the multi-apartment building, in accordance with Article 72 of the Housing Act (SZ-1), adopted a resolution to establish a community of owners as a legal entity for the management of the multi-apartment building. They registered such a community and manage the building themselves. Such a resolution can only be adopted with the consent of all condominium owners. Along with the resolution on the establishment of the community of owners, the

condominium owners must also adopt a statute, the content of which is determined by Article 73 of the SZ-1, which includes the definition of the manner of fulfilling the obligations of members towards the community.

According to the Rules on the Allocation of Remote Controls adopted by the condominium owners, each recipient of a remote control should inform the administrator of their name and surname and the registration number of the vehicle for which the remote control is issued. Without this information, it will not be possible to pursue those who are not entitled to park in the yard.

All condominium owners are thus in a contractual relationship and should respect the rules adopted by the community of condominium owners that bind them, including the rules for the use of parking spaces. If the parking spaces are intended only for condominium owners, then the control over the use of parking spaces can only be carried out by limiting access to the parking lot solely to those entitled.

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(e.g., with cards, remote controls, etc.). If the remote control is linked to the apartment owner and the car (and not to the number of parking spaces for the apartment), then it is logical that for the allocation of the remote control and monitoring of its proper use, the name and surname of the user and the registration number of the car that can be parked are obtained. The legal basis for such processing of personal data is point (b) of the first paragraph of Article 6 of the General Regulation, i.e., an agreement among the owners, from which they may also withdraw. An individual (apartment owner) who does not agree with the proposed processing of personal data will not take over the remote control. A separate question in this regard is how the apartment owners will enable access to the common property for these owners as well.

****8. DATA ON THE DYNAMICS OF ACCRUED CREDIT FROM THE SHARE OF COLLECTED RENT****

Must the administrator provide the apartment owner with data on the dynamics of accrual and on the already accrued but not paid credit from the share of collected rent for the apartment, which is co-owned by the apartment owners and for which the rent is collected by the administrator on behalf of the owners?

SZ-1 in Article 32 stipulates that apartment owners must conclude a contract on mutual relations, which regulates the management and use of the multi-apartment building, while the third indent of the first paragraph of Article 33 of the same law stipulates that the contract on mutual relations must contain, in addition to the components required by the SPZ, particularly a provision on how to inform apartment owners about management matters.

The relationship between apartment owners and the administrator has the nature of a civil law (contractual) relationship, whereby it concerns the relationship between the administrator and each resident of the multi-apartment building. Existing legislation does not explicitly stipulate the administrator's obligation regarding informing about the dynamics of the accrual of credit from the common property of all apartment owners. However, every owner has the right to control their property by nature. The administrator, in this specific case, acts solely as an authorized representative of the apartment owners, who collects and distributes the rent from the tenant of the apartment, which is co-owned by the apartment owners, on their behalf. This means that each co-owner has a legal interest and therefore also the right to verify the data on the dynamics of the accrual of credit from the collected rent for the apartment of which they are a co-owner. In managing the common parts (if the apartment is thus owned by all apartment owners), it is also necessary to consider the fourth paragraph of Article 118 of the SPZ, which stipulates that the administrator must ensure the distribution and collection of obligations, and point 4 of the first paragraph of Article 50 of SZ-1, which stipulates that the administrator must report to the apartment owners about their work and issue monthly and annual accounts.

****9. MINUTES OF THE MEETING OF APARTMENT OWNERS WITH A LIST OF ATTENDEES****

Can the administrator of the multi-apartment building send the apartment owners the minutes of the

meeting of the apartment owners with a list of present apartment owners and their signatures?

Article 38 of SZ-1 stipulates that the administrator must prepare minutes no later than 30 days after each meeting of the owners. The minutes are confirmed when signed by the apartment owners designated by those present at the meeting of the owners. The second paragraph of the same article stipulates that the minutes must contain data on the place and time of the meeting, a list of present apartment owners with signatures, proposals for resolutions voted on at the meeting, and the voting results. The third paragraph stipulates that the administrator must publish the minutes in the manner in which the meeting of the apartment owners is convened. From the first paragraph of Article 36 of SZ-1, it follows that the meeting of the owners is convened with a written invitation at least 14 days before the meeting.

The invitation is left by the administrator in the mailbox of each individual apartment owner and published on the notice board accessible to all apartment owners.

The minutes of the meeting of the apartment owners, which also includes personal data of those present at the meeting, can be forwarded by the administrator to the apartment owners in a manner that prevents third parties from accessing the data, unless the management contract stipulates otherwise. The administrator can publish the minutes with personal data on a notice board that is not accessible to third parties entering the multi-apartment building (e.g., on a notice board in the premises where the owners' meetings take place, or in other common areas accessible only to apartment owners), and the administrator can also send the minutes to the apartment owners in a way that places it in a sealed envelope in their mailboxes or forwards it to them via email, provided that...

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must ensure that the email addresses of other co-owners are not disclosed to any individual co-owner (unless prior consent for disclosure has been obtained), which means that the email addresses will be entered in the blind copy (in the "Bcc:" field and not in the "To:" field).

If the notification of co-owners is specified in the contract on mutual relations, the administrator shall follow the method specified in the contract. Co-owners must, in accordance with the provision of Article 32 of the SZ-1, conclude a contract on mutual relations with the administrator of the multi-apartment building regarding the management issues of the multi-apartment building, which regulates the management and use of the multi-apartment building, whereby the third indent of the first paragraph of Article 33 of the SZ-1 stipulates that the contract on mutual relations must contain, in addition to the elements required by the SPZ, particularly the method of notifying co-owners about management matters.

Considering that the SZ-1 does not allow for the public disclosure of personal data, the administrator of the multi-apartment building must obtain personal consent from individuals whose personal data is included in the minutes of the co-owners' assembly for such disclosure (e.g., on the notice board in the lobby of the multi-apartment building) in accordance with point (a) of the first paragraph of Article 6 of the General Regulation, or must delete their personal data before the publication of the minutes. However, such disclosure can also be defined by the co-owners in the contract on mutual relations, which binds all co-owners, as explained in the previous question.

In cases where the administrator does not have personal consent from individuals for the publication of the minutes of the co-owners' assembly, the minutes, which also include personal data of the co-owners, can only be communicated to the co-owners without their consent in a manner that prevents third parties from accessing the data, as explained in the response to the previous question. Therefore, the administrator can publish the minutes containing personal data on a notice board that is not accessible to third parties entering the multi-apartment building, and can also send it to the co-owners in a way that places it in their mailboxes in a sealed envelope or forwards it to them via email.

10. **** (NON) INCLUSION ON THE ATTENDANCE LIST ****

Can a co-owner request the administrator not to include their name on the attendance list?

The minutes with the details of the owners (first and last name) who attended the owners' assembly, along with the resolutions passed, must be communicated by the administrator to the other owners, as the legitimate interest of the co-owners prevails in knowing what the decisions of the owners' assembly are, since these bind all residents, including those who did not attend the assembly. An individual co-owner who participated in the owners' assembly cannot request the administrator not to include their name on the attendance list, as the provisions of Article 38 of the SZ-1 bind both the administrator and the co-owner clearly.

11. **REQUEST FOR SIGNATURE ON THE PERSONAL DATA PROTECTION FORM**

Can the administrator require that the co-owner and/or member of the supervisory board confirm by signing a form that they have received the requested personal data, and therefore must handle it carefully?

Such conduct is not explicitly stipulated by the ZVOP-2 or any other law; however, from the perspective of personal data protection and ensuring traceability (which the law requires), it is advisable for the administrator to have a confirmation that the co-owner and/or member of the supervisory board has received certain personal data (for example, proof of delivery when sent by mail, such as a return receipt). Of course, it is also advisable for the administrator to remind the user that the obtained personal data must be used for lawful purposes and must not be disclosed to unauthorized persons, but they are not obliged to do so. The administrator would not be responsible for any unlawful processing by the data recipient. In the case of disclosing personal data, the administrator must demonstrate an appropriate legal basis, ensure traceability of the disclosure of personal data (which personal data, to whom, when, and on what legal basis it was disclosed, for what purpose or for what reasons, or for the needs of which procedure), and ensure their proper protection during transmission (e.g., if the data is sent by mail).

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12. PERSONAL DATA OF SIGNATORIES OF THE MANAGEMENT AGREEMENT

Can an individual condominium owner obtain personal data of other condominium owners who have signed the management agreement?

Article 53 of the SZ-1 stipulates that the relationships between condominium owners and the manager are regulated by a contract for the provision of management services, which may, in addition to the authorizations from Article 50 of this law, specify other rights and obligations for the manager. The contract for the provision of management services is concluded when it is signed by the manager and as many condominium owners as necessary for the adoption of the decision on the appointment of the manager. This means that for the validity of the mentioned contract, in accordance with Article 25 of the SZ-1, the signature or consent of co-owners holding more than half of the ownership shares is required. In order to verify the validity of such a contract, it is therefore essential that a list of apartment owners is also an integral part of it, i.e., the name and surname, size of the apartment, and the ownership share of each condominium owner in the common parts, as specified in Article 106 of the SPZ. Since the contract for the provision of management services represents a contractual relationship between all condominium owners and the manager, all condominium owners, as co-contractors, are entitled to the data, including personal data, that are stated or that are an integral part of this contract. Condominium owners are entitled to such data based on the SZ-1, as well as based on point (b) of the first paragraph of Article 6 of the General Regulation, as this type of processing of personal data is necessary and appropriate for conducting negotiations for the conclusion of the contract and for fulfilling the contract.

The Information Commissioner adds that condominium owners of a multi-apartment building are also entitled to obtain those contracts that the manager has concluded in the name and on behalf of the condominium owners, which consequently relate to each individual condominium owner.

13. DATA ON THE DEBTS OF CONDOMINIUM OWNERS

Can the manager provide condominium owners with information about the debts of condominium

owners regarding the payment of management costs?

The SZ-1 in Articles 64 to 67 stipulates that the manager must report on their work to the owners at least once a year, and must issue a cost statement to each condominium owner monthly. The statement must clearly show the distinction between the individual costs for the entire building and for each individual owner. At the request of the owner, the manager must also issue a certificate of the status of unpaid obligations on a specific date to the individual owner.

When measuring devices are installed in individual residential units that allow for individual consumption and cost accounting, operating costs are divided according to actual consumption; the manager may not provide data on the consumption/costs of individual condominium owners to other condominium owners unless they have obtained prior personal consent for such disclosure. In the case of payment based on actual consumption, the division of costs and the amount of obligations cannot be problematic, as they can be determined for each owner individually. If, in such a case, there is a failure to pay costs, the manager is the one who reminds the debtor condominium owner and, if necessary, proposes enforcement proceedings against them.

When the devices in the building do not allow for individual consumption and cost accounting for its individual units, the operating costs incurred on its common parts and individual units are divided according to Article 22 of the Rules on the Management of Multi-Apartment Buildings (hereinafter: the Rules) either based on the number of residential units, the area of the individual unit, or the number of users of the individual unit. In such a case, owners are entitled to access the cost-sharing calculator so that they can continuously monitor the manager's operations or whether the costs have been correctly divided. It should be noted that the principle of data minimization from Article 5 of the General Regulation applies, according to which the manager may only provide those data that minimally interfere with the privacy of condominium owners while still ensuring a legitimate purpose – oversight of the correct accounting of costs. For example, if the cost is divided based on the size of the apartment, the manager can only report on the amount of costs based on the size of the apartment, and it is not in accordance with the principle of data minimization for the manager to disclose the names of the condominium owners of individual apartments. Therefore, the manager may only provide those data that are related to the amount of paid costs and from which it can be determined how much cost has been charged to each individual residential unit. If the obligation of an individual condominium owner depends on the obligation of another owner or when, due to the non-payment of an individual condominium owner, all other condominium owners suffer damage, their personal name, the amount of payment, and other data necessary for the correct determination of obligations in relation to other condominium owners are not protected. The Information Commissioner warns that it is necessary to consider the provision of the first paragraph of Article 70 of the SZ-1, according to which the manager, when concluding legal transactions with third parties in connection with management...

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The multi-apartment building's authorized representative may not agree to joint liability of the apartment owners for fulfilling obligations. It is also necessary to consider the second paragraph of Article 71 of the SZ-1, which stipulates that if obligations to a third party are not fully settled for all apartment owners, the administrator must, at the request of the third party, provide information about the apartment owner who has not paid their share of the obligation necessary for filing a lawsuit within eight working days of receipt. This means that the administrator may only exceptionally provide personal data of debtors to other apartment owners without their consent, specifically in cases where all other apartment owners will suffer damage due to the debt of an individual owner, but not in cases where the administrator or a third party (e.g., a supplier) will suffer damage as a result.

Information about debtors may be provided to apartment owners only in a manner that prevents unauthorized persons from accessing it (e.g., by placing sealed envelopes in the mailboxes of apartment owners and not by posting various lists on publicly accessible bulletin boards).

****14. DEBTORS IN THE RESERVE FUND****

Can the administrator inform apartment owners about debtors in the reserve fund, specifically

regarding the amount and due date of each debt?

The purpose of the reserve fund, as derived from the SPZ and SZ-1, is to cover future costs of regular management or maintenance. Article 26 of the SZ-1 stipulates that apartment owners shall adopt a maintenance plan for a period of at least one and a maximum of five years, which is prepared by the administrator. In the maintenance plan, apartment owners specify the maintenance work to be carried out and the method of securing funds through contributions to the reserve fund. According to the provision of point 5 of the first paragraph of Article 50 of the SZ-1, the administrator accepts payments from apartment owners based on the monthly statement and pays obligations arising from contracts concluded with third parties. The administrator is authorized under point 4 of the fourth paragraph of Article 118 of the SPZ to manage the reserve fund and the common money, while the SZ-1 in Article 43 states that the administrator manages the financial resources of the reserve fund and must, in accordance with Article 44 of the SZ-1, issue a written reminder to the apartment owner who does not contribute their share to the reserve fund. The administrator's reminder is considered a credible document in terms of the law governing enforcement and security.

Regarding the notification about non-payers in the reserve fund, it is important to mention the fourth paragraph of Article 118 of the SPZ, which among other things states that the administrator must ensure the distribution and collection of obligations. According to the provisions of the SPZ on co-ownership, apartment owners have the right to know which apartment owners are not contributing to the reserve fund, as the consequences of non-payment (i.e., hindering the execution of work according to the adopted maintenance plan) are borne by all apartment owners. If, for example, due to non-payment, there is not enough money in the fund for roof repairs, the roof repair cannot begin. Similarly, in cases where a certain repair is carried out despite some apartment owners not contributing to the repair costs, the non-payment of one apartment owner affects the rights of another apartment owner, as the paying owner indirectly pays for the non-payer. The first paragraph of Article 66 of the SPZ states that a co-owner has the right to possess the property and use it together with other co-owners in proportion to their ideal share, without violating the rights of other co-owners. No one may act in a way that infringes upon the equal rights of others.

From the above, it is clear that the administrator of the multi-apartment building can inform apartment owners about those apartment owners who are not contributing to the reserve fund, regarding the amount and due date of the debt, but not in a way that unauthorized persons can access this information. At the same time, the administrator is also obliged under the SZ-1 to report on matters affecting the execution of their rights and obligations.

****15. DISCLOSURE OF PERSONAL DATA TO THE SUPERVISORY BOARD****

What personal data of apartment owners can the administrator disclose to the supervisory board?

To determine the rights and obligations of the supervisory board of apartment owners, it is necessary to consider Article 39 of the SZ-1, which stipulates that, unless the apartment owners agree otherwise, the supervisory board consists of three members who oversee the work of the administrator, which arises from...

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of the contract for the provision of administrative services, proposes draft resolutions, which are voted on by signing the document, and submits initiatives to the administrator. These members have the right to access all data related to management from the perspective of their supervisory function over the administrator. Since the members of the supervisory board are representatives of the condominium owners, they do not have more rights regarding the acquisition of personal data than other condominium owners. This means that all personal data obtained by the members of the supervisory board for the purpose of overseeing the administrator's work can also be obtained by all other condominium owners.

****16. INFORMATION ABOUT THE OWNER OF THE ADJACENT APARTMENT****

Can the building administrator inform a condominium owner who the owner of the adjacent apartment

is and the designation of the apartment from the land register? What if the owner is a legal entity?

The Land Register Act¹³ (hereinafter: ZRK-1) in Article 1 states that the land register is a public book intended for the registration and public disclosure of data on rights to real estate and legal facts related to real estate. It consists of the main book and a collection of documents. The main book is intended for the registration of data on rights to real estate and legal facts related to real estate, which the law stipulates must be registered in the land register. The collection of documents consists of documents based on which entries were made in the main book. Article 4 of ZRK-1 stipulates that all entries in the land register are public, and under the conditions specified by this law, the documents based on which entries were made in the land register are also public.

Through the e-ZK portal, free access and computer printouts of the data from the computerized main book are available to everyone. For an owner who is a natural person, accessible data includes the name and surname, residence address, and partial EMŠO (the last six digits are concealed).

Based on the above, the Information Commissioner concludes that in the case where the data about a specific condominium owner, who is a natural person, is registered in the land register (which means it is public), the administrator would not violate the provisions of the ZVOP-2 by disclosing this data to another condominium owner. Regarding data related to legal entities, the Information Commissioner clarifies that these are not data protected under the General Regulation and ZVOP-2, as personal data only refers to data related to natural persons.

13 (Official Gazette of the Republic of Slovenia, No. 58/03, 37/08 – ZST-1, 45/08, 28/09, 25/11, 14/15 – ZUUJFO, 69/17, 11/18 – ZIZ-L, 16/19 – ZNP-1 and 121/21).

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C. Which personal data of other owners and/or tenants can the manager provide to third parties or organizations?

1. DATA SHARING WITH THE MUNICIPALITY

Can the manager provide data about tenants of apartments to the municipality for the purpose of calculating the municipal property tax (NUSZ)?

The compensation for the use of building land is a mandatory fee regulated by the Building Land Act¹⁴ (hereinafter referred to as ZSZ). The entities liable for paying the compensation for the use of building land are the direct users of the land or building or part of the building, which includes the holder of the disposal right or owner, tenant of an apartment or business premises, or holder of the residential right. The municipal administrative body determines the compensation for the use of building land for the liable entity.

The processing of personal data in the municipality is governed by Article 21.a of the Local Self-Government Act¹⁵ (hereinafter referred to as ZLS), which stipulates that the municipality acquires the data it needs to perform tasks within its jurisdiction, processes it, and carries out statistical, record-keeping, and analytical functions for its needs. The municipality acquires and processes personal identification numbers (EMŠO), personal names, addresses of permanent or temporary residence, dates and places of birth or death, data on personal vehicles, data on real estate, and other personal data in accordance with the law. The municipality acquires the aforementioned personal data from the individual to whom they pertain or from another data controller if stipulated by law. The data controller must also provide the municipality access to other data from the collection if required by law and if the municipality needs this data to carry out its legally defined competencies.

As the data controller of personal data about tenants that the municipality needs to perform tasks within its jurisdiction, i.e., calculating the compensation for the use of building land, the manager is obliged to provide the municipality with the requested personal data, but only based on a reasoned written request. If the manager provides personal data from the collection to an authorized user who has (as in this specific case) a legal basis for obtaining them under the law, personal consent from the individuals to whom the personal data pertains is not required for such sharing. Both the municipality

and the manager are obliged to adhere to the principle of data minimization when acquiring or sharing personal data and to request or provide only those personal data that are truly necessary and appropriate for achieving the municipality's purpose (point (c) of the first paragraph of Article 5 of the General Regulation).

2. DATA SHARING WITH THE CHIMNEY SWEEPING COMPANY

Can the manager provide data about owners to the company that cleans flue and ventilation systems for the purpose of issuing invoices?

According to the provisions of SZ-1, the manager is the authorized representative of the apartment owners, representing them in matters related to the management of the multi-apartment building, and ensures that the rights and obligations arising from contracts with third parties are executed. When entering into legal transactions with third parties, the manager acts in the name and on behalf of the apartment owners (Article 68 of SZ-1), unless SZ-1 or the management contract stipulates otherwise. In accordance with Article 68 of SZ-1, upon signing the contract, the manager is obliged to provide the service provider with a list of apartment owners, which includes the name and surname of the apartment owner, address, apartment number, and other data necessary for the service provider to perform the service, as well as the cost-sharing among the apartment owners.

Therefore, if the manager has entered into a contract with a specific company for the provision of flue and ventilation system cleaning services on behalf of and for the account of the apartment owners, according to the provisions of SZ-1, the service provider must be provided with a list of apartment owners upon signing the contract, which includes the name and surname of the apartment owner, address, apartment number, and other necessary data.

14 Official Gazette of the Republic of Slovenia, No. 44/97, 67/02 – ZV-1, 110/02 – ZUreP-1, 110/02 – ZGO-1, and 199/21 – ZUreP-3.

15 Official Gazette of the Republic of Slovenia, No. 94/07 – official consolidated text, 76/08, 79/09, 51/10, 40/12 – ZUJF, 14/15 – ZUUJFO, 11/18 – ZSPDSL-1, 30/18, 61/20 – ZIUZEOP-A, and 80/20 – ZIUOOPE.

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residential and other data necessary for the provision of the supplier's service, and the cost-sharing among condominium owners.

3. TRANSMISSION OF DATA IN COURT AND ADMINISTRATIVE PROCEEDINGS

Must the administrator redact tax numbers and addresses (personal data) of condominium owners in evidentiary documents in court and administrative proceedings?

If a court or administrative authority requests the administrator to provide certain personal data or documents that also contain personal data, the administrator must provide them. Unless otherwise stipulated by another law, the request for the transmission of personal data must, in accordance with the first paragraph of Article 41 of the ZVOP-2, contain the following information:

1. data about the applicant of the request (for a natural person: personal name, address of permanent or temporary residence; for a sole proprietor, an individual conducting business, and for a legal entity: name or business name and address or registered office and registration number) and the signature of the applicant or authorized person;
2. legal basis for obtaining the requested personal data;
3. purpose of processing personal data or reasons demonstrating the necessity and appropriateness of the personal data for achieving the purpose of acquisition;
4. subject and number or other identification of the matter for which the personal data is needed, and the indication of the authority or other entity handling the matter;
5. types of personal data to be transmitted;
6. form and method of obtaining the requested personal data.

The authority specifies the basis for obtaining data in its request (e.g., the General Administrative Procedure Act, the Courts Act, the Civil Procedure Act, the Criminal Procedure Act). In case of doubt regarding the existence of a legal basis for the transmission of data, the administrator may request additional clarifications from the authority requesting the documents or personal data. In these cases, the administrator must not redact individual parts of the documents, as redaction could raise questions about their authenticity or evidentiary value, but this is assessed by the authority conducting the procedure. The Information Commissioner advises that if the administrator believes that certain documents contain data that are not necessary for conducting a specific procedure, they should contact the authority and agree on the method of transmitting documents or personal data.

The Information Commissioner adds regarding the transmission of data to users (including state authorities) that the administrator must ensure external traceability in accordance with the sixth paragraph of Article 41 of the ZVOP-2, meaning that for each transmission of personal data, it must be possible to later determine which personal data were transmitted, to whom, when, on what basis, for what purpose, or for which reasons, or for the needs of which procedure, unless another law stipulates otherwise for the transmission of specific types of data or this is evident from the processing log under Article 22 of this law. This means that the administrator must keep a record of whom (name and surname and address of residence of the natural person or name of the company and address of the registered office), when, which personal data (types of personal data, to whom the transmitted personal data relate), and on what legal basis (provision of the law that authorizes the user to obtain the data) and for what purpose or for the needs of which procedure they were transmitted.

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4. TRANSMISSION OF DATA TO THE INSURANCE COMPANY

Which personal data (e.g., the telephone number of the injured party) can the administrator transmit to the insurance company for the purpose of asserting claims for compensation for damage to the common parts of the building?

Article 268 of the Insurance Act¹⁶ (hereinafter: ZZavar-1) stipulates that insurance companies collect, process, store, transmit, and use personal data for the purpose of concluding and executing insurance contracts, which also includes the recovery of unpaid obligations arising from insurance contracts, resolving claims, asserting reimbursement claims and other rights and obligations, including investigating suspicious cases of unjustified compensation or insurance payments arising from insurance under this law, in accordance with legislation governing the protection of personal data and databases in the field of insurance.

Insurance companies may manage the following databases:

- a database of insurers and insured parties,
- a database of insurance cases,
- a database for assessing insurance coverage and the amount of compensation or insurance payment.

The aforementioned article specifies the types of personal data that insurance companies may maintain about the insurer and the insured in each database: among other things, personal name, gender, date and place of birth, permanent and temporary residence, tax number, and nationality of the persons involved in the damage event, witnesses, and beneficiaries of compensation or insurance payment, the designation of the damage file, the date of filing the claim and the payment of compensation or insurance payment, the type, place, time, and description of the insurance case, a description of the material and non-material damage incurred in the insurance case, data on criminal acts and offenses related to insurance cases (excluding the telephone number), and from whom and how they can obtain data (e.g., usually directly from the individual concerned, from other persons who know something about the insurance case, from databases of other insurance companies, state authorities, healthcare service providers, social work centers, ZPIZ, ZZZS, certain ministries, and other database managers that hold data that insurance companies can obtain and collect in accordance with

ZZavar-1).

Based on the above, the Information Commissioner concludes that the administrator does not have a legal basis (ZZavar-1) for transmitting the telephone number of the injured party to the insurance agent. The administrator could only transmit the telephone number based on the prior personal consent of the injured party, but they may suggest that the injured party call the insurance agent themselves, as a prompt resolution of the claim for compensation is generally in the interest of every injured party.

Video Surveillance in Multi-Apartment Buildings

The implementation of video surveillance in multi-apartment buildings must also be based on one of the legal bases from Article 6 of the General Regulation. Furthermore, the video surveillance operator, as the personal data controller, must also comply with all other provisions of the ZVOP-2 (including the general provisions regarding the implementation of video surveillance from Article 76) and the General Regulation (the obligations of administrators as personal data controllers are summarized at the end of the guidelines), as video recordings of individuals constitute personal data, and the implementation of video surveillance results in a collection of personal data.

ZVOP-2 does not contain detailed provisions on the implementation of video surveillance in multi-apartment buildings; therefore, the legal bases specified in the first paragraph of Article 6 of the General Regulation apply to video surveillance in a multi-apartment building. An appropriate legal basis for implementing video surveillance in a multi-apartment building could be point (f) of the first paragraph of Article 6 of the General Regulation, if and to the extent that the conditions for this are met. Thus, processing is lawful if it is necessary for the legitimate interests pursued by the controller or a third party, and if such interests do not override the interests or fundamental rights and freedoms of the individual who may be recorded. Such a legitimate interest of the owners could, depending on the circumstances, be the safety of people and property, while it would also be necessary to weigh whether the rights of others who typically move in that space (e.g., children playing on the lawn) do not prevail over their interest. It should also be noted

16 Official Gazette of the Republic of Slovenia, No. 93/15, 9/19, 102/20, 48/23, and 78/23 – ZZVZZ-T.
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It is necessary that the ZVOP-2 explicitly prohibits the implementation of video surveillance in elevators. In accordance with housing legislation, it is also required to obtain the prescribed consent of the owners of the multi-apartment building for the implementation of video surveillance. According to the provision of Article 67 of the SPZ, this could be considered a regular management transaction, for which the consent of co-owners holding more than half of the ideal shares is required. Transactions necessary for the operation and maintenance of the property to achieve its purpose are considered regular management transactions.

Video surveillance in a multi-apartment building can actually be carried out by the residents themselves by authorizing a specific floor owner, a member of the supervisory board, a member of the community of floor owners, or, for example, the manager for this task. Floor owners, as joint managers, must, in accordance with Article 26 of the General Regulation, transparently and by mutual agreement determine the duties of each of them in order to fulfill the obligations imposed on them by the General Regulation, particularly concerning the realization of the rights of individuals to whom personal data relates and regarding the provision of information from Articles 13 and 14 of the General Regulation. They must ensure the security of personal data by adopting appropriate technical and organizational measures for the protection of personal data (Articles 24 and 32 of the General Regulation), including, for example, designating a person responsible for the record of the video surveillance system (paragraph 12 of Article 76 of ZVOP-2) or maintaining a data processing log (Article 22 of ZVOP-2) and designating authorized persons who can access the recordings of the video surveillance system. An authorized person could also perform tasks such as maintaining a record of processing activities, exercising the rights of individuals, etc.¹⁷

Individuals must also be appropriately informed about the implementation of video surveillance, specifically by publishing a notice about video surveillance, which is regulated in Article 76 of ZVOP-2 and in accordance with Article 13 of the General Regulation, which governs the notification of individuals about the processing of personal data.¹⁸ According to the third paragraph of Article 76 of ZVOP-2, the notice must be visibly and clearly published in a manner that allows the individual to become aware of the implementation of video surveillance and to refuse entry into the monitored area.

Such a notice about video surveillance must, in addition to the information from the first and second paragraphs of Article 13 of the General Regulation, necessarily contain the following information:

1. A written or unequivocally graphically described fact that video surveillance is being conducted;
2. The purposes of processing, the designation of the operator of the video surveillance system, a telephone number or email address, or a website address for the purposes of exercising the rights of the individual in the field of personal data protection;
3. Information about the specific impacts of processing, particularly further processing;
4. Contact details of the authorized person (telephone number or email address);
5. Unusual further processing, such as transfers to entities in third countries, live monitoring of events, the possibility of audio intervention in the case of live monitoring of events.

¹⁷ More on this can be found in point 6.

¹⁸ More about this can be read on the IP website: <https://www.ip-rs.si/zakonodaja/reforma-evropskega-zakonodajnega-okvira-za-varstvo-osebnih-podatkov/klju%C4%8Dna-podro%C4%8Dja-uredbe/obve%C5%A1%C4%8Danje-posameznikov-o-obdelavi-osebnih-podatkov>.

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Instead of publication in the notice, the notification of the individual may also be carried out in such a way that the data controller publishes the information from the first and second paragraphs of Article 13 of the General Regulation and the information from points 3 to 5 of the notice on the websites. In this case, the notice from the previous paragraph must include the web address where this information is accessible (URL of the website, and it may also include a QR code). This means that the operator of the video surveillance system must indicate at least the fact (written or graphic) that video surveillance is being conducted and publish the web address (URL) where all information from Article 13 of the General Regulation is accessible. It is recommended that the controller also specifies the purposes of processing, the operator of the video surveillance system, a telephone number or email address, or a web address for the purposes of exercising the rights of the individual in the field of personal data protection.

We recommend that you also read the Guidelines on Video Surveillance.

1. INSTALLATION OF A FAKE CAMERA

Unknown individuals cause damage in the elevator and often press the emergency button. The security service must respond to the call, but it has always been determined that it was a false alarm. Each arrival has also been charged by the security service, and the costs have been divided among all the condominium owners, who, to avoid further costs, requested the installation of a camera (which can also be fake) in the elevator. Is this permissible?

The tenth paragraph of Article 76 of the ZVOP-2 states that video surveillance is not permitted in elevators, restrooms, changing rooms, hotel rooms, and other similar spaces where an individual has a reasonable expectation of a higher degree of privacy. Therefore, video surveillance in elevators is not allowed. Regarding fake cameras, the Information Commissioner explains that the installation of a fake camera does not constitute a violation of the provisions of ZVOP-2 (since it does not involve the processing of personal data); however, the fact of the existence of a fake camera must be determined by the national supervisor for personal data protection if this issue arises, and thus verify whether video surveillance is actually being conducted or not.

2. RECORDING THE ENTRANCE TO ONE'S OWN APARTMENT

A condominium owner has installed a camera in the hallway that records the entrance to their apartment. Should they have obtained permission from the neighbors before installing the camera?

If a condominium owner installs a camera that is directed exclusively at their door, meaning it captures or records only individuals entering their apartment and not other persons moving in the hallway, this constitutes the processing of personal data, which is governed by the second paragraph of Article 2 of the General Regulation and the second paragraph of Article 3 of ZVOP-2, which state that the General Regulation or ZVOP-2 do not apply to the processing of personal data carried out by individuals exclusively for personal use, family life, or other domestic needs. This means that if video surveillance is conducted exclusively for personal use, the provisions of the General Regulation and ZVOP-2 do not apply to the operators of such video surveillance.

3. VIDEO SURVEILLANCE OF THE GARBAGE DISPOSAL AREA

In one of the two residential buildings, the condominium owners decided to equip the enclosed area designated for garbage disposal with a video camera. The disposal area is located on private land belonging to the condominium owners of both buildings. They made this decision because they want to curb improper waste disposal and monitor those individuals who leave bulky waste in the area.

The garbage disposal area is, in this case, a common area of the two buildings; therefore, the introduction of video surveillance in it is permissible if a sufficient proportion of the condominium owners of both buildings consent and if it is implemented for lawful purposes in accordance with point (f) of the first paragraph of Article 6 of the General Regulation. A lawful purpose for which video surveillance can be conducted in multi-apartment buildings or for which video recordings can be stored and reviewed could be, for example, ensuring the safety of people and protecting property, provided that the conditions from point (f) of the first paragraph of Article 6 of the General Regulation are met, and not for detecting and proving violations related to improper waste disposal. Therefore, the installation of a camera solely for the purpose of preventing improper waste disposal would not be lawful.

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4. VIDEO SURVEILLANCE OF PARKING LOT IN FRONT OF THE BLOCK FROM THE BALCONY

One of the apartment owners has placed a camera on their balcony to record the parking lot in front of the block. The owner of the parking lot is the municipality. Does such conduct constitute a violation of the provisions of the ZVOP-2?

If the processing of data (recording and storing footage) is intended solely for private use, the provisions of the General Regulation and ZVOP-2 are excluded, which does not mean that it is lawful conduct (see below). The General Regulation and ZVOP-2 do not apply to the processing of personal data carried out by individuals exclusively for personal use, family life, or other domestic needs.

Circumstances that may change the above position include:

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publication of disputed recordings. The Court of Justice of the European Communities ruled on November 6, 2003, in the Lindqvist case, establishing the boundary between the concept of processing personal data for personal use and the processing of personal data that would fall under the jurisdiction of the Information Commissioner (IP). According to this ruling, publication on a website undoubtedly constitutes processing of personal data and does not fall under the exception of personal use. This means that there would be an infringement of personal data protection if the video recordings were publicly published or shared with third parties.

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conducting professional or commercial activity. If an individual were to conduct video surveillance for the purpose of professional or commercial activity, the use for domestic needs would be exceeded.

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recording public space. The use for personal or domestic needs is also exceeded when video surveillance involves recording public space.

The IP adds that an individual who believes that their right to privacy is being violated by such recording may file a lawsuit in court under Article 134 of the Obligations Code (hereinafter: OZ), which can order the cessation of the act (video surveillance) that violates the inviolability of a person's personality, personal and family life, or any other personal right. If someone records other people on land outside the boundaries of their real estate without permission and their knowledge, they may also be criminally liable for their actions. Unauthorized image recording constitutes a criminal offense under Article 138 of the Criminal Code if the perpetrator significantly infringes on the privacy or family life of another person with their actions. Prosecution begins at the request of the injured party. In cases where an individual suffers material or non-material damage due to being recorded, their relatives, or their premises, or due to the display of recordings, they may claim compensation from the perpetrator based on Article 179 of the OZ.

The IP also points out that in such video surveillance (surveillance from the balcony), it must also be considered that the video recordings may not represent personal data at all. If the recording is of poor quality and the individual cannot be identified based on such a recording, it does not constitute personal data. An individual who is merely presumed to be in the video and thus is not identifiable cannot enjoy legal protection under the General Regulation or ZVOP-2. A personal data is, according to point 1 of Article 5 of the General Regulation, any information relating to an identified or identifiable individual, where an individual is identifiable if they can be directly or indirectly identified.

5. INTERCOMS

Is the use of a video intercom permissible?

A video intercom does not fall within systems considered as video surveillance; therefore, the General Regulation and ZVOP-2 do not regulate the use of video intercoms, as the intercom serves the function of identifying visitors who wish to enter, and not the function of retaining recordings from a video surveillance system for the purpose of protecting people and property, which authorized persons can review and use as evidence in the event of any harmful incident.

In cases where the device also allows recording, it actually constitutes the implementation of video surveillance in the form of storing video recordings, or the transmission of live images without recording (the so-called "extended eye"), for which there must be an appropriate legal basis in accordance with the General Regulation or ZVOP-2. As explained above, video surveillance conducted by an individual from their private property or private ownership is generally considered processing of personal data for personal use.

19 Official Gazette of the Republic of Slovenia, No. 50/12 – official consolidated text, 6/16 – correction, 54/15, and 38/16.

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for use and domestic needs, except in cases where an individual conducts video surveillance while performing professional or commercial activities, shares recordings with unauthorized third parties, or publishes them on the internet, or to the extent that video surveillance involves recording public spaces.

6. AUTHORIZATION OF VIDEO SURVEILLANCE BY THE CUSTODIAN

In a multi-apartment building that has an administrator, the apartment owners have decided to implement video surveillance and that the custodian will manage it. Is such a method of implementing video surveillance permissible, or must the administrator carry out the video surveillance if the building has one?

The choice of who will implement video surveillance in a multi-apartment building is left to the apartment owners and does not necessarily have to be the administrator of that building. If the apartment owners decide to introduce video surveillance, they can also carry it out themselves. In this case, they must authorize one of the apartment owners to manage the video surveillance system, who must ensure the legality of the processing of video recordings and their proper security. The fact that

all apartment owners could access the video surveillance system is not permissible from the perspective of personal data protection.

Given the numerous obligations imposed on video surveillance operators by the ZVOP-2 and the General Regulation, it is practically easier for the administrator to carry out video surveillance, and the implementation of video surveillance is considered one of the tasks of the administrator, which is also stated in the contract for providing administrative services. According to the first paragraph of Article 53 of the SZ-1, the relationships between apartment owners and the administrator are regulated by a contract for providing administrative services, which can, in addition to the authorizations from Article 50 of this law, specify other rights and obligations.

The method of implementing video surveillance is therefore dependent on the decision of the apartment owners. The administrator can also transfer the implementation of video surveillance to qualified and registered security companies that install and manage cameras on behalf of and for the account of their clients, i.e., the personal data controllers. In such a case, the administrator must conclude a data processing agreement with the company in accordance with Article 28 of the General Regulation, which will specify how and for what purpose the employees of this company will process video recordings and what procedures and measures will be taken to ensure the security of the video recordings. A sample contract for the purposes of contractual processing can be viewed on the website <https://www.ip-rs.si/obrazci/varstvo-osebni-podatkov/>, and we also recommend reading the Guidelines on Contractual Processing, which are available at <https://www.ip-rs.si/publikacije/priročnik-in-smernice-smernice-po-splodni-uredbi-o-varstvu-podatkov-gdpr-smernice-o-pogodbeni-obdelavi>.

Duties of Administrators under ZVOP-2 (summary)

Administrators must take care and ensure that:

- ☐ personal data is processed only if there is an appropriate legal basis in accordance with the General Regulation (first paragraph of Article 6 of the General Regulation),
- ☐ only those personal data that are necessary and appropriate for the purposes for which they are processed are processed (principle of data minimization – point (c) of the first paragraph of Article 5 of the General Regulation),
- ☐ personal data is processed in accordance with the purpose for which it was collected (principle of purpose limitation - point (b) of the first paragraph of Article 5 of the General Regulation),
- ☐ accuracy and up-to-dateness of personal data in the collections they maintain are ensured (principle of accuracy - point (d) of the first paragraph of Article 5 of the General Regulation),
- ☐ lawful and fair processing of personal data is ensured, or information from Article 13 of the General Regulation is provided to the individual (principle of lawfulness, fairness, and transparency - point (a) of the first paragraph of Article 5 of the General Regulation),

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- ☐ Personal data is retained only as long as necessary for the purposes for which the personal data is processed (point (e) of the first paragraph of Article 5 of the General Regulation),
- ☐ Ensures traceability of the transfer of personal data (the possibility of subsequently determining which personal data was transferred, to whom, when, on what basis, for what purpose or for what reasons or for the needs of which procedure - sixth paragraph of Article 41 of the ZVOP-2),
- ☐ Ensures appropriate security or protection of personal data (Articles 24 and 32 of the General Regulation; e.g., that they protect the premises where personal data is processed and the system software and application software used to process personal data, that they prevent unauthorized access to personal data during transmission, including transmission via telecommunications means and networks, that they provide an effective way to block, destroy, delete, or anonymize personal data and that they enable later determination of when specific personal data was entered into the personal

data collection, used, or otherwise processed and who did so, for the period prescribed in the fifth paragraph of Article 22 of the ZVOP-2, which is generally two years from the end of the calendar year in which the processing actions were recorded - internal traceability) and, if necessary, adopt acts that prescribe procedures and measures for the protection of personal data,

☐ All collections of personal data they maintain are recorded in the form of records of processing activities (Article 30 of the General Regulation),

☐ Individuals are enabled to access their own personal data and to supplement, correct, transfer, object to, block, or delete inaccurate or unlawfully processed personal data (Articles 15-22 of the General Regulation),

☐ They conclude written contracts with processors, which will specify the types of personal data processed by the processors, for what purpose and in what manner they are processed, and what procedures and measures will be taken to ensure their protection (Article 28 of the General Regulation); A sample contract for the purposes of contractual processing can be viewed on the website <https://www.ip-rs.si/obrazci/varstvo-osebni-podatkov/>, and we also recommend reading the Guidelines on Contractual Processing, which are available at <https://www.ip-rs.si/publikacije/priro%C4%8Dniki-in-smernice/smernice-po-splo%C5%A1ni-uredbi-o-varstvu-podatkov-gdpr/smernice-o-pogodbeni-obdelavi>,

☐ In the case of transferring personal data to third countries - those that are not EU or European Economic Area member states, they ensure the legality of such transfer (Chapter V of the General Regulation) - in this regard, see the Guidelines on the transfer of personal data to third countries and international organizations, which are available at <https://www.ip-rs.si/publikacije/priro%C4%8Dniki-in-smernice/smernice-po-splo%C5%A1ni-uredbi-o-varstvu-podatkov-gdpr/smernice-glede-prenosa-osebni-podatkov-v-tretje-dr%C5%BEave-in-mednarodne-organizacije-po-splo%C5%A1ni-uredbi-o-varstvu-podatkov>,

☐ In the case of conducting direct marketing, they ensure lawful execution by:

o Providing an appropriate legal basis for conducting direct marketing via regular addressed mail in accordance with the first paragraph of Article 6 of the General Regulation (e.g., legitimate interests or consent),

o Informing the individual during direct marketing about their right to object to the use of their data for the purpose of direct marketing (second paragraph of Article 21 of the General Regulation) and

o Obtaining prior consent from the individual when conducting marketing via electronic mail or SMS messages (Article 226 of the Electronic Communications Act),

☐ Lawfully conduct video surveillance (if the administrator conducts video surveillance of their property, it can be implemented if there is an appropriate legal basis and under the conditions specified in Article 76 of the ZVOP-2); in relation to the implementation of video surveillance, the IP also advises viewing the Guidelines on Video Surveillance, which are published at <https://www.ip-rs.si/publikacije/priro%C4%8Dniki-in-smernice/smernice-po-splo%C5%A1ni-uredbi-o-varstvu-podatkov-gdpr/smernice-glede-izvajanja-videonadzora>,

☐ Obtain a decision from the IP if they intend to implement biometric measures (Articles 82, 83). More about this can be read in the Guidelines on Biometrics under the ZVOP-2, which are published at <https://www.ip-rs.si/publikacije/priro%C4%8Dniki-in-smernice/smernice-po-splo%C5%A1ni-uredbi-o-varstvu-podatkov-gdpr/smernice-glede-biometrije-po-zvop-2>,

☐ Notify the IP when they detect a breach of personal data security and it is (at least) likely that the breach could jeopardize the rights and freedoms of individuals. The notification must be made immediately after the breach is detected, and no later than 72 hours after the breach is detected,

☐ Conduct an impact assessment when it is possible that a certain type of processing could cause a high risk to the rights and freedoms of individuals (Article 35 of the General Regulation, Articles 69, 80, and 87 of the ZVOP-2). Guidelines for assessing the impact on the protection of personal data are available at <https://www.ip-rs.si/publikacije/priro%C4%8Dniki-in-smernice/smernice-po-splo%C5%A1n>

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